

# Vinod Kumar Varshney v. State of U.P. and others

Allahabad High Court · Division Bench · 5 January 2023 · Writ-C No. 36614 of 2022 · **Writ disposed of; arrears relegated to Clause 6.5; theft assessment left pending.**

## HEADNOTE

The High Court will not quash a proposed theft-assessment notice where the final order is still pending and the licensee undertakes to consider the consumer's objections at that stage, nor a demand for electricity arrears when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies objections before the Executive Engineer. The writ is disposed of with that liberty.

## FACTUAL SUMMARY

Vinod Kumar Varshney filed a writ petition in the Allahabad High Court seeking quashing of two electricity-department notices. The notice dated 6 May 2022 proposed assessment of Rs. 5,07,494 for alleged theft of electricity and invited objections within fifteen days; the petitioner said he had already objected. The notice dated 11 May 2022 demanded arrears of Rs. 1,44,758.56. Counsel for the department stated that the final theft-assessment order had not yet been passed.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

disputed electricity arrears — objections to Executive Engineer

#### HOLDING

A demand for electricity arrears, if disputed, is to be objected to before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ court will not quash such a notice. A proposed theft-assessment notice likewise requires no writ direction where the final assessment has not been passed and the licensee states that already-filed objections will be considered then. ¶ 1

## PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** The Court refused a writ quashing the 11 May 2022 arrears demand and left the petitioner to objections before the Executive Engineer under Clause 6.5. ¶ 1

**clause-6.5-statutory-remedy-disputed-bill** Disputed electricity dues of Rs. 1,44,758.56 were treated as a Clause 6.5 matter, not a writ controversy. ¶ 1

**billing-objection-to-executive-engineer-under-6.5** The statutory forum named for the arrears dispute is the Executive Engineer under Clause 6.5. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — VALIDITY OF THE PROPOSED THEFT ASSESSMENT OF RS. 5,07,494

Final assessment order not yet passed; objections to be considered at that stage. ¶ 1

### NOT DECIDED — CORRECTNESS OF THE ARREARS DEMAND OF RS. 1,44,758.56

Petitioner relegated to Clause 6.5 objections before the Executive Engineer. ¶ 1

